



**PLANNING &
DEVELOPMENT**

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-70 5631 Charles Street – Assigned Zoning
Date: June 3, 2026

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/08/2026
- Public Services Committee 6/15/2026
- Second reading 6/22/2026
- Public Services Committee 7/06/2026
- Third and final reading 7/13/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their June 1, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (June 3, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 104 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AR AGRICULTURAL RESIDENTIAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED SOUTH OF CHARLES STREET, EAST OF WENANDY AVENUE, AND WEST OF MCKINLEY AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Elaine Y. Michaels, owner of: N1/2 Tracts 3 and 4, Wenandy Acres petitioned the Governing Body of the City of Cheyenne to annex the real property described herein and to make it a part thereof.

Section 2. That Section 2.2.8 of the Cheyenne Unified Development Code (UDC) provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on June 1, 2026, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AR Agricultural Residential.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
JUNE 1, 2026
STAFF REPORT

FILE: PUDC-26-70: 5631 Charles St. – Assigned Zoning

LOCATION: South of Charles St, east of Wenandy Ave, west of McKinley Ave.

REQUEST: Assigning City zones to properties that the owner is annexing.

ANNEXATION APPLICANT: Shane Hanson, Stiel Surveying

OWNER: Elaine Y Michaels

CURRENT ZONING: County LU

PROPOSED Zoning: AR – Agricultural Residential

FUTURE LAND USE: Mixed-Use Residential

PURPOSE: To establish a City zoning district concurrent with annexation.

PREPARED BY: Morgan Dennis, Planner I



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for the north half of Tracts 3 and 4 Wenandry Acres to AR – Agricultural Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

This is land-owner petition to annex the property into the City.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis shall be assigned a City zone based on:**
 - a. Permitted uses,**
 - b. Uses that could reasonably be anticipated for conditional use approval under the current zoning,**
 - c. Current uses, or**
 - d. Surrounding City zoning,****as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.**

This parcel is currently zoned LU – Land Use within the County. City Rights-of-Way surrounds the property on three sides. Parcels surrounding the property to the east, west, and south is zoned County LU. City MR Medium-density Residential is located to the north of the property. Other City zoned lots in the area are zoned AR – Agricultural Residential. The lot is currently being used for residential use.

Lots that are similar in size and location to the subject parcel have been zoned AR – Agricultural Residential to maintain the uses of the properties. While the current use might not involve agricultural activity, the parcel is large enough to sustain limited agricultural uses and should be zoned to accommodate such potential uses.

This assigned zoning **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for the north half of Tracts 3 and 4, Wenandy Acres to AR -Agricultural Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map

